

**CHAPTER lii.**

An Act to extend the time for completion of certain works to authorise the Port of London Authority to acquire compulsorily lands in the City of London and for other purposes. A.D. 1912.
[7th August 1912.]

WHEREAS by the Port of London Act 1908 (herein-after called "the Act of 1908") the Port of London Authority (herein-after called "the Port Authority") was established for the purpose of administering preserving and improving the Port of London and otherwise for the purposes of the said Act:

And whereas by the London and India Docks Company (New Works) Act 1901 (herein-after called "the Act of 1901") the London and India Docks Company were authorised to construct a new dock pier and works more specifically described in that Act and to purchase the lands required for that purpose and by the London and India Docks Company (Various Powers) Act 1902 (herein-after called "the Act of 1902") further powers were conferred upon the London and India Docks Company for the purchase of land:

And whereas by the London and India Docks Company Act 1904 (herein-after called "the Act of 1904") the period limited by the Act of 1901 for the completion of the works authorised by that Act as amended by the Act of 1902 was extended until the ninth day of August one thousand nine hundred and thirteen and the period limited for the compulsory purchase of lands for the purposes of the works was also by such Act extended until the eighth day of August one thousand nine hundred and eight:

And whereas by the Act of 1908 the undertaking and all the powers rights and authority of the London and India Docks Company were transferred to the Port Authority:

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And whereas it is expedient that the time limited by the Act of 1901 for the completion of the aforesaid works as extended by the Act of 1904 should be extended until the ninth day of August one thousand nine hundred and twenty :

And whereas by the Act of 1908 the Port Authority were empowered inter alia to acquire erect furnish and equip buildings and offices and it is expedient that the Port Authority should be authorised to acquire the lands herein-after in this Act mentioned for the purposes of erecting offices and other buildings or otherwise for the purposes of the Act of 1908 or this Act :

And whereas under and by virtue of section 239 of the Thames Conservancy Act 1894 it was provided that the Conservators of the River Thames should in every year pay over to the Commissioners of Woods on behalf of His most Excellent Majesty one equal third part of all sums rents and revenues and proceeds received by them in respect of sales leases or grants or licences for docks recesses beds for boats or barges dwarf or other wharves piers landing places piles mooring chains stages cranes apparatus and other machinery or works of any description of in or upon any portions of the bed or shores of the Thames below the City Stone above Staines Bridge or any encroachments embankments and inclosures upon or from the bed or shores of that part of the Thames and also that the Conservators of the River Thames should in every year pay to the Commissioners of Woods on behalf of His Majesty the sum of five hundred pounds in lieu of all payments in respect of ballast sand earth or gravel dredged or raised by the Conservators from the bed or shores of the Thames :

And whereas by the Thames Conservancy Act 1894 the rights and interests of His Majesty in right of His Crown in certain portions of the bed soil or shores of the River Thames within the same limits were reserved :

And whereas by the Act of 1908 all rights powers and duties of the Conservators of the River Thames in respect of the River Thames below the landward limit of the Port of London were transferred to the Port Authority together with the Lower Navigation Fund and all property and liabilities of the Conservators in respect of the Thames below such landward limit of the Port of London and by virtue of such Act the liabilities of the Conservators of the River Thames under section 239 of the Thames Conservancy Act 1894 so far as the

same relates to the Thames below the landward limit of the Port of London have been transferred to the Port Authority: A.D. 1912.

And whereas by an agreement (a copy whereof is set out in the schedule to this Act) made the twenty-second day of December one thousand nine hundred and eleven between George Granville Leveson Gower (in this Act called "the vendor") one of the Commissioners of His Majesty's Woods Forests and Land Revenues of the one part and the Port Authority of the other part (which agreement is in this Act referred to as "the scheduled agreement") provision was made for the sale to the Port Authority of the part share estate right title and interest of His Majesty in right of His Crown in and to the said sums rents revenues and proceeds secured by section 239 of the Thames Conservancy Act 1894 and it is expedient that such agreement be confirmed and that provision be made for carrying the objects thereof into effect and that the Commissioners of Woods be authorised to sell and the Port Authority to purchase the estate right title and interest of His Majesty in right of His Crown in portions of the foreshore bed soil and shores of the River Thames so reserved to His Majesty as aforesaid:

And whereas plans of the lands to be purchased or acquired by compulsion under the powers of this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands were duly deposited for public inspection with the clerk of the peace for the county of London and the clerk of the peace for the city of London and the said plans and book of reference respectively are in this Act referred to as the deposited plans and book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited as the Port of London Act 1912. Short title.

2. The Lands Clauses Acts (except sections 127 to 130 of the Lands Clauses Consolidation Act 1845) so far as the same are applicable for the purposes of and not inconsistent with or

Incorporation of Lands Clauses Acts.

A.D. 1912. varied by this Act are hereby incorporated with and form part of this Act:

Provided that notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 any claim for compensation under this Act or any Act incorporated herewith by any person having or claiming in respect of any interest in the lands in respect of which compensation is claimed not greater than that of a lessee or tenant for any term of which not more than eighteen months remain unexpired at the time when the claim is made shall be determined by justices in the manner provided by section 121 of the Lands Clauses Consolidation Act 1845.

Interpreta-
tion.

3. In this Act the several words and expressions to which by the Acts wholly or partially incorporated herewith meanings are assigned have in this Act the same respective meanings unless there be in the subject or context something repugnant to or inconsistent with such construction:

Provided that for the purposes of this Act the expressions "the promoters of the undertaking" and "the company" in the Lands Clauses Acts shall be construed to mean the Port Authority.

Extension
of time for
completion
of works
authorised
by Act of
1901.

4. The period limited by the Act of 1901 for the completion of the works authorised by that Act as amended by the Act of 1902 and as extended by the Act of 1904 is hereby extended until the ninth day of August One thousand nine hundred and twenty.

Power to
acquire
lands for
offices and
buildings.

5. Subject to the provisions of this Act the Port Authority for the purposes of erecting offices and other buildings or for any of the purposes of the Act of 1908 or this Act may purchase take and hold the lands in the parish of the city of London in the city of London and county of London hereinafter described which are delineated on the deposited plans and described in the deposited book of reference viz.:—

(a) Houses and premises known respectively as Nos. 22 23 25 27 31 and 32 and 33 Crutched Friars:

(b) Land and buildings situate in the rear of the premises known as No. 27 Crutched Friars and being a portion of the Crutched Friars warehouses of the Port Authority:

- (c) Land and buildings situate on the east side of the premises known as Nos. 31 and 32 Crutched Friars being a portion of the Crutched Friars warehouses of the Port Authority: A.D. 1912.
- (d) Yard entrance porch and passage at the rear of the premises known as No. 33 Crutched Friars and leading from Seething Lane to Nos. 32 and 31 Crutched Friars:
- (e) Yard and premises known as French Horn Yard situate between and behind the properties Nos. 26 and 25 Crutched Friars:
- (f) House and premises known as No. 1 French Horn Yard:
- (g) Houses and premises known respectively as Nos. 33 34 35 36 37 and 38 39 40 and houses premises and passage ways known respectively as Nos. 40a and 41 and 41a Seething Lane:
- (h) Houses and premises known respectively as Nos. 1 2 3 4 5 6 7 8 9 and 10 Catherine Court:
- (i) Court yard passage and premises known as Catherine Court situate between Trinity Square and Seething Lane:
- (j) Houses and premises known respectively as Nos. 12 and 13 and 14 Trinity Square:
- (k) Houses and premises known respectively as Nos. 1 2 and 3 Savage Gardens:
- (l) Warehouse and premises situate at the back of No. 3 Savage Gardens.

6. The Port Authority may at any time after they have acquired the houses and premises known as Nos. 1 2 3 4 5 6 7 8 9 and 10 Catherine Court 12 and 13 and 14 Trinity Square and 34 and 35 Seething Lane stop up and discontinue for public and other traffic Catherine Court and thereupon all public rights of way and other public rights if any over the same shall be absolutely extinguished and the site and soil thereof shall vest in the Port Authority freed and discharged from all such rights and liabilities. Stopping up
Catherine
Court.

7. The Port Authority may at any time after the passing of this Act stop up and discontinue for public and other traffic Stopping up
French Horn
Yard.

A.D. 1912. the yard and premises known as French Horn Yard situate between and behind the properties Nos. 25 and 26 Crutched Friars and thereupon all public rights of way and other public rights if any over the same shall be absolutely extinguished and the site and soil thereof shall vest in the Port Authority freed and discharged from all such rights and liabilities.

Notice to
London
County
Council.

8. If the Port Authority under the powers of this Act permanently stop up or discontinue for public traffic Catherine Court or French Horn Yard they shall forthwith give notice thereof in writing to the London County Council.

As to private
rights of way
over lands
taken com-
pulsorily.

9. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished. Provided that the Port Authority shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

As to stop-
ping up and
alteration
of sewers
pipes &c.

10. The Port Authority may for any purposes upon the lands acquired by them under the powers of this Act and also in Catherine Court and French Horn Yard when the same shall have been stopped up under the powers of this Act stop up and remove or raise sink or alter the position of any drain or sewer watercourse water pipe or gas pipe and also any post pipe tube wire or apparatus laid down or placed for telegraphic telephonic or other purposes and any electric pipes posts tubes wires or apparatus laid down or placed for supplying electricity and may remove any other obstruction:

Provided that the Port Authority shall not remove raise sink or otherwise alter the position of any pipe post tube wire or apparatus laid down or placed for telegraphic telephonic or other purposes or other apparatus belonging to the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878:

Provided that nothing in this Act shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

11. For the protection of the Metropolitan Water Board (in this section referred to as "the Board") the following provisions shall have effect unless otherwise agreed in writing between the Port Authority and the Board (that is to say):—

A.D. 1912.
For protec-
tion of Me-
tropolitan
Water
Board.

(1) Wherever by reason or in consequence of the stopping up under the powers of this Act of Catherine Court or French Horn Yard any apparatus of the Board situate in or under the court or yard so stopped up shall be rendered derelict or unnecessary the Port Authority shall forthwith after such stopping up pay to the Board such a sum as may be agreed between the Board and the Port Authority or as failing such agreement may be determined by arbitration as herein-after provided to be the value of—

(a) the apparatus of the Board situate in and under the court or yard so stopped up; and

(b) any apparatus of the Board connected with the property of the Board and used exclusively for the purposes of the supply of water to any premises to which a supply is furnished by means of the apparatus in and under the court or yard stopped up;

and any such apparatus shall thereupon become the property of the Port Authority:

(2) In addition to the payment referred to in the last preceding subsection of this section the Port Authority shall pay to the Board their charges of and incidental to the cutting off of any such apparatus as is referred to in the said subsection from any other apparatus of the Board and of and incidental to any other works or things rendered necessary or expedient in consequence of any apparatus of the Board being rendered derelict or unnecessary by the stopping up of the court or yard:

(3) If any difference shall arise under this section between the Port Authority and the Board the same shall be referred to an arbitrator to be agreed upon or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and the Arbitration Act 1889 shall apply to any such reference.

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For protec-
tion of Gas
Light and
Coke Com-
pany.

12. For the protection of the Gas Light and Coke Company (in this section referred to as "the gas company") the following provisions shall unless otherwise agreed in writing between the gas company and the Port Authority have effect (that is to say):—

(1) All works matters or things which under the provisions of this Act the Port Authority may be empowered to do or execute with reference to the mains pipes syphons or other works of the gas company shall be done and executed by and at the cost of the Port Authority but to the reasonable satisfaction and under the direction of and in such manner as shall be required by the engineer of the gas company and such works matters or other things shall not be commenced until after fourteen days previous notice thereof in writing shall have been given to the gas company and the Port Authority shall not lay down any such mains pipes syphons or other works contrary to the regulations of any Act of Parliament relating to the gas company and any such mains pipes syphons or other works which may be removed under the aforesaid powers of this Act shall be and remain the property of the gas company. Provided always that if the gas company shall elect themselves to execute or do any portion of the works matters and things which the Port Authority may by this Act be empowered to execute or do with reference to or affecting the mains pipes syphons apparatus or other works of the gas company and of such their election shall give seven days' notice in writing to the Port Authority by leaving the same at their head office the gas company may themselves execute or do that portion of the said works matters and things and the reasonable expense of and incident thereto shall be repaid by the Port Authority to the gas company on demand:

(2) And whereas there are in certain of the highways or places which may be stopped up under the powers of this Act divers mains pipes syphons and other apparatus belonging to the gas company and used by them for supplying gas. Therefore notwithstanding such stopping up those mains pipes syphons or other apparatus shall be and remain the property

of the gas company who shall be at liberty to remove and take away the same and the Port Authority shall pay to the gas company their reasonable charge of removing or altering any of the mains pipes syphons or other apparatus in immediate communication therewith which the works of the Port Authority shall render useless or which shall require to be altered :

- (3) If any interruption whatever in the supply of gas by the gas company (otherwise than to any premises in the occupation of the Port Authority) shall be in any way occasioned or sustained by any act or omission of the Port Authority or by the acts of any of their contractors agents workmen or servants or any person in the employ of them or any or either of them the Port Authority shall forfeit and pay to the gas company for such interruption for the use and benefit of the gas company either (a) the sum of ten pounds for every hour during which such interruption shall continue or (b) a sum equal to the aggregate cost loss or damages which the gas company may sustain or incur by reason or in consequence of such interruption whichever of those sums shall be the less :
- (4) Notwithstanding anything in this Act contained the Port Authority shall be responsible for and make good to the gas company all costs losses damages and expenses which may be occasioned to the gas company or to any of their mains pipes syphons apparatus property works and conveniences (including any loss of gas and all injury or loss by explosion or otherwise) through by reason of or consequent on any act or omission of the Port Authority or of any of their contractors agents workmen or servants or any of the persons in their employ or in the employ of their contractors or others and the Port Authority will effectually indemnify and hold harmless the gas company from all claims and demands upon or against them by reason of any such act or omission as aforesaid :
- (5) The gas company may, if they deem fit employ watchmen or inspectors to watch and inspect the removal

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raising sinking or alteration of position of any of the mains pipes syphons and apparatus of the gas company and the reasonable wages of such watchmen or inspectors shall be borne by the Port Authority and be paid by them to the gas company:

(6) The fact that any work or thing has been done or executed in accordance with any requirement of the gas company or in accordance with any direction or award of an arbitrator shall not excuse the Port Authority from paying or making good to the gas company under this Act any forfeiture costs losses damages or expenses or from indemnifying the gas company under this Act:

(7) Any difference arising between the Port Authority and the gas company respecting any of the matters referred to in this enactment shall be referred to and settled at the request of either party by an engineer to be appointed as arbitrator by the President for the time being of the Institution of Civil Engineers and the Arbitration Act 1889 shall apply to the reference.

Correction of errors in deposited plans and book of reference.

13. If any omission misstatement or erroneous description shall have been made of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or described in the deposited book of reference the Port Authority may after giving ten days' notice to the owners lessees and occupiers of the lands affected by such proposed corrections apply to two justices acting for the city of London for the correction thereof and if it shall appear to the justices that such omission misstatement or erroneous description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of any such omission and in what respect any such matter shall have been misstated or erroneously described and such certificate shall be deposited with the clerk of the peace for the county of London and the clerk of the peace for the city of London and shall be kept by such clerks of the peace respectively with the other documents to which it relates and thereupon such deposited plans and book of reference shall be deemed to be corrected according to such certificate and the Port Authority may take the lands in accordance with such certificate.

14. The Port Authority and their surveyor or other officer and any person duly authorised in writing under the hand of the secretary of the Port Authority may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards from time to time twelve hours' previous notice enter upon and into the lands and buildings by this Act authorised to be taken or any of them for the purpose of surveying and valuing the said lands and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands and buildings.

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Power to
Port Authority to enter
upon property for
survey and
valuation.

15. In settling any question of disputed purchase money or compensation payable under this Act by the Port Authority the court or person settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the first day of November one thousand nine hundred and eleven if in the opinion of such court or person the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Compensation in case
of recently
altered
buildings
acquired by
Port Authority.

16. The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Port Authority award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Port Authority by the claimant giving sufficient particulars and in sufficient time to enable the Port Authority to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Port Authority have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant. Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Port Authority to amend the statement in writing of the claim delivered by him to the Port Authority in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Port Authority if they object to the amendment and

Costs of
arbitration
in certain
cases.

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such amendment shall be subject to such terms enabling the Port Authority to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case. Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

Persons
under dis-
ability may
grant ease-
ments &c.

17. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Port Authority any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to
Port Autho-
rity to
make agree-
ments with
owners of
property &c.

18. The Port Authority may subject to the provisions of this Act enter into and carry into effect agreements with any person being the owner of or interested in any lands houses or property adjoining the lands by this Act authorised to be acquired with respect to the sale by the Port Authority to such person of any lands or property for such consideration as may be agreed upon between the Port Authority and such person and the Port Authority may accept as satisfaction of the whole or any part of such consideration the grant by such person of any lands or other property required by the Port Authority for the purposes of this Act.

Limitation
of time for
purchase of
lands.

19. The powers of the Port Authority for the compulsory purchase or taking of lands for the purposes or under the powers of this Act shall cease after the expiration of three years from the passing of this Act.

As to ad-
vancement
or setting
back of line
of buildings
adjoining
streets.

20. It shall be lawful for the Port Authority on the one hand and the mayor and commonalty and citizens of the city of London (herein-after called "the corporation") in reference to any street or land in the city of London and the London County Council in reference to any street or land in the metropolitan borough of Stepney on the other hand or any or either of them to

enter into and carry into effect agreements with respect to the advancement or setting back of the line of buildings abutting on any street adjoining the lands to be acquired under this Act and it shall be lawful for the Port Authority the corporation and the mayor aldermen and councillors of the metropolitan borough of Stepney (herein-after referred to as "the Stepney Borough Council") or any or either of them to enter into and carry into effect agreements with respect to the transfer to such authorities or either of them for the purpose of being thrown into any such street of any lands to be acquired as aforesaid in exchange for any portion of the street which may become disused owing to the advancement of such building line and the corporation or the Stepney Borough Council may in connexion with or as part of any such agreement as aforesaid transfer to the Port Authority portions of any street as aforesaid free from any public or other rights.

21. The Port Authority may sell or lease on building or other leases all or any portion of the lands or buildings acquired under the powers of this Act or under the Port of London Act 1911 or otherwise acquired by them for the purposes of or in connexion with the providing of buildings and offices for the Port Authority or of their Crutched Friars warehouses which shall not be utilised or required for the purposes of offices for the Port Authority and may demolish the buildings thereon and may appropriate and lay out any portion of such land for building purposes and erect buildings over any such lands and may sell lease or otherwise dispose of any buildings so erected by them for such consideration and on such terms and conditions as they think fit and all moneys received by the Port Authority as consideration for lands or buildings sold under the powers of this section shall be carried to the Port fund of the Port Authority and shall be applied only to purposes of the Port Authority to which capital is properly applicable.

22. Nothing in this Act shall exempt any offices or buildings erected by the Port Authority on lands acquired by them for the purposes of this Act from the provisions of the London Building Acts 1894 to 1909 and any Act amending the same.

23.—(1) The scheduled agreement as set out in the schedule to this Act is hereby confirmed and made binding on the Port Authority and valid as between the Commissioners of Woods and the Port Authority and may and shall be carried into

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Power to sell and lease lands &c. and lay out lands and erect buildings &c.

Saving provisions of London Building Acts 1894 to 1909.

Confirming Crown agreement and authorising sale to

A.D. 1912.
Port Authority by Commissioners of Woods of bed &c. of River Thames reserved to Crown.

effect and the Vendor or the Commissioners of Woods or any of them and the Port Authority is or are hereby empowered to execute the assurances conveyance or release by the scheduled agreement agreed to be executed and to give full effect to such agreement.

(2) It shall be lawful for the Commissioners of Woods with the consent of the Treasury to sell and for the Port Authority to purchase the estate right title and interest of His Majesty in right of His Crown in and to the portions of the bed soil and shores of the River Thames within the limits of the Port of London or any encroachments embankments or enclosures therefrom or thereupon which were reserved by the Thames Conservancy Act 1894 and the Commissioners of Woods and the Port Authority may enter into and carry into effect contracts or agreements or deeds of conveyance or otherwise for effecting any such sale or purchase and the Port Authority may pay any purchase money in respect of such sale and purchase out of the Port fund or out of any moneys borrowed for such purpose.

Vesting in Port Authority of share of His Majesty in right of His Crown of proceeds of licences &c. under section 239 of Thames Conservancy Act 1894.

24. On the completion of the purchase under the scheduled agreement all the part share estate right title and interest of His Majesty in right of His Crown under the Thames Conservancy Act 1894 in and to the sums of money rents revenues and proceeds arising and hereafter to arise from all sales leases grants licences and permissions made or given or hereafter to be made or given of or in respect of the bed and shores of the River Thames within the limits of the Port of London as defined by the Act of 1908 (other than and except those parts of the said bed or soil or shores which are reserved to and vested in or in trust for His Majesty) and of and in respect of the encroachments embankments and enclosures thereof (other than and except as aforesaid) and which share is payable to the Commissioners of Woods on behalf of His Majesty under section 239 of the Thames Conservancy Act 1894 and also the yearly sum of five hundred pounds payable to the said Commissioners on behalf of His Majesty in lieu of ballast and dredging as in the same section of the said last-mentioned Act is provided shall as from the first day of January one thousand nine hundred and thirteen vest in the Port Authority.

Expenses of execution of Act.

25. All payments made by the Port Authority for the purposes of or in connexion with the exercise of the powers

of this Act including payments to be made under the scheduled agreement shall be made out of the Port fund or out of moneys borrowed for the purpose and any moneys received by the Port Authority in pursuance of or consequent to the exercise of the powers of this Act shall be carried to the credit of that fund. A.D. 1912.

26. Subsection (1) of section 18 of the Act of 1908 shall be read and have effect as if the purposes for which the Port Authority may borrow money under such section had included the exercise of the powers conferred on the Port Authority by the sections of this Act the marginal notes whereof respectively are "Power to acquire lands for offices and buildings" "Power to sell and lease lands &c. and lay out lands and erect buildings &c." and "Confirming Crown agreement and authorising sale to Port Authority by Commissioners of Woods of portions of bed &c. of River Thames reserved to Crown." Extending provisions of section 18 of Act of 1908 as to borrowing.

27. As from the date of completion of the purchase of the part share estate right title and interest of His Majesty in right of His Crown in the sums rents revenues and proceeds mentioned in the scheduled agreement in pursuance of the section of this Act the marginal note whereof is "Confirming Crown agreement and authorising sale to Port Authority by Commissioners of Woods of portions of bed &c. of River Thames reserved to Crown" section 86 of the Thames Conservancy Act 1894 shall be read and have effect as if the words "and approved" had been omitted from such section and as if the latter part of the first proviso to such section had been repealed from the words "and a copy of every such valuation" down to the end of such proviso and section 116 of the said Act shall be read and have effect as if the words "and approved in writing by one of the Commissioners of Woods" and "and a copy thereof shall be transmitted by the Conservators to the Commissioners of Woods" had respectively been omitted from such section and section 239 of the said Act shall be repealed so far as it relates to sales leases grants licences or permission in respect of the portion of the River Thames within the Port of London as defined by the Act of 1908 and to any payments to be made by the Conservators to the Commissioners of Woods on behalf of His most Excellent Majesty in respect thereof and in respect of the payment of five hundred pounds mentioned in the proviso to such section and section 285 of such Act shall be read and have effect Repeal of certain provisions of Thames Conservancy Act 1894.

A.D. 1912. as if the words "so far as the same are not payable under this Act to the Commissioners of Woods" had been omitted from such section.

Costs of Act.

28. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act shall be defrayed by the Port Authority out of the Port fund.

The SCHEDULE referred to in the foregoing Act.

A.D. 1912.

AN AGREEMENT made the twenty-second day of December one thousand nine hundred and eleven between GEORGE GRANVILLE LEVESON GOWER Esquire (herein-after called "the Vendor") one of the Commissioners of His Majesty's Woods Forests and Land Revenues of the one part and THE PORT OF LONDON AUTHORITY (herein-after called "the Purchasers") of the other part.

1. Subject as herein-after provided the Vendor on behalf of His Majesty and by virtue of the powers conferred by the Crown Lands Acts 1829 to 1906 agrees to sell and the Purchasers agree to purchase as from the first day of January one thousand nine hundred and thirteen for the sum of Two hundred and thirty-five thousand pounds All the part share estate right title and interest of His Majesty in right of His Crown under the Thames Conservancy Act 1894 in and to the sums of money rents revenues and proceeds arising and hereafter to arise from all sales leases grants licences and permissions made or given or hereafter to be made or given of or in respect of the bed and shores of the River Thames within the limits of the Port of London as defined by the Port of London Act 1908 (other than and except those parts of the said bed or soil or shores which are vested in or in trust for His Majesty) and of and in respect of the encroachments embankments and enclosures thereof (other than and except as aforesaid) and which share is payable to the Commissioners of Woods on behalf of His Majesty under section 239 of the Thames Conservancy Act 1894 and also the yearly sum of five hundred pounds payable to the said Commissioners on behalf of His Majesty in lieu of ballast and dredging as in the same section of the said last-mentioned Act is provided.

2. The Purchasers shall pay the said purchase money clear of all deductions to the credit of the cash account of the Commissioners of His Majesty's Woods Forests and Land Revenues at the Bank of England on or before the first day of January one thousand nine hundred and thirteen and upon such payment being made the purchase shall be completed at the Office of Woods No. 1 Whitehall.

3. Nothing herein contained is to affect the rights of His Majesty to share in the receipts from or in respect of the said bed and shores payable by the Purchasers to the Commissioners of Woods up to and including the thirty-first day of December one thousand nine hundred

A.D. 1912. and twelve in accordance with the Thames Conservancy Act 1894 or to any arrears of payments in respect of piers or other accommodation works and rights on or in respect of the said river remaining due to His Majesty up to that date.

4. In case the Purchasers shall not pay the said purchase money on or before the first day of January one thousand nine hundred and thirteen in manner aforesaid they shall pay interest thereon to the Vendor at the rate of four pounds per cent. per annum until the payment thereof.

5. No abstract or evidence of title to the property agreed to be sold shall be required by the Purchasers nor shall any requisitions or objections be made by them in respect thereof or of this agreement and the title of His Majesty to the said property shall be accepted without reserve.

6. On payment of the purchase money at the time and in manner aforesaid the Vendor and all other necessary parties (if any) shall execute in duplicate a proper assurance to the Purchasers of the property hereby agreed to be sold which shall be duly enrolled pursuant to the said Crown Lands Acts. The conveyance or release and every other assurance which shall be required by the Purchasers shall be prepared by the Vendor's solicitor at the expense of the Purchasers and a copy or draft thereof shall be left at or sent by registered post to the office of the Purchaser's solicitor at Victoria Embankment at least ten days before the day of completion for approval by them.

7. The Purchasers shall upon the completion of the purchase pay all costs and expenses and professional charges of the surveyor to the Vendor and of the Vendor's solicitor relating to this sale and the conveyance or release to the Purchasers.

8. This agreement is conditional upon the same being sanctioned and approved and ordered to be carried into effect by an Act of Parliament which shall also confer on the Purchasers all such borrowing and other powers as may be requisite in that behalf and shall further repeal as from the first day of January one thousand nine hundred and thirteen and in relation to the area within the limits of the Port of London as defined as aforesaid but not further or otherwise so much of section 86 of the Thames Conservancy Act 1894 as requires a copy of valuations to be transmitted to the said Commissioners and a statement of every sale and disposition of land to be included in the return therein mentioned and one-third part of the consideration therefor to be paid to the said Commissioners and also so much of section 116 of the same Act as requires the person therein mentioned to be approved in writing by one of the said Commissioners and a copy of every valuation made by such person to be transmitted to the said Commissioners and also section 239 of the same Act (but so that the repeal

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of such last-mentioned section shall be without prejudice to the provisions of clause 3 hereof) and also the words "so far as the same are not payable under this Act to the Commissioners of Woods" in section 285 thereof The Purchasers shall use their best endeavours to obtain such an Act of Parliament but if for any reason such an Act is not passed before the thirty-first day of December one thousand nine hundred and twelve the Vendor shall be at liberty by notice in writing to be given or sent by registered post to the Purchasers or their solicitor at his office aforesaid to rescind this agreement and to annul this sale.

9. This agreement is also made subject to such alterations (other than in respect of the purchase money) as Parliament shall think fit to make therein but if the Committee on the Bill make any material alteration in this agreement it shall be competent to either of the parties hereto to withdraw from the same.

In witness whereof the Vendor hath hereunto set his hand and seal and the Purchasers have caused their common seal to be hereunto affixed the day and year first above written.

Signed sealed and delivered by
the Vendor in the presence of
FREDK. HELLARD
Office of Woods.

G. G. LEVESON
GOWER.

L.S.

The common seal of the Port of
London Authority was here-
unto affixed by order of the
said Authority in the presence
of
FRANK AYLIFFE
Secretary.

Seal of the
Port of London
Authority.

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